

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 22-31

THOMPSON PIPE GROUP, INC.
COMPLAINANT

v.

OMNI LOGISTICS LLC,
RESPONDENT.

**RESPONDENT OMNI LOGISTICS LLC’S COMBINED REPLY IN
SUPPORT OF ITS MOTION TO DISMISS FOR LACK OF SUBJECT
MATTER JURISDICTION AND FOR FAILURE TO STATE A CLAIM AND
RESPONSE TO COMPLAINANT’S CROSS-MOTION FOR LEAVE TO AMEND**

Respondent Omni Logistics LLC (“Omni”) respectfully submits this Combined Reply in Support of its Motion to Dismiss for Lack of Subject Matter Jurisdiction and for Failure to State a Claim (the “Reply”) and Response to Complainant’s Cross-Motion for Leave to Amend (the “Response”). For its Reply and Response, Omni states as follows.

Omni filed its Motion to Dismiss for Lack of Subject Matter Jurisdiction and for Failure to State a Claim (the “Motion to Dismiss”) on January 24, 2023. Among other arguments Omni raised in its Motion to Dismiss, Omni provided evidence that it is not a proper respondent in this case, and that the proper respondent (if any) is Epic Freight Solutions, LLC (“Epic”)—the entity that actually provided services to Complainant Thompsons Pipe Group, Inc. (“Complainant”). In response to Omni’s Motion to Dismiss, Complainant filed a Cross-Motion for Leave to Amend (the “Motion for Leave”), attaching a proposed amended complaint (the “Amended Complaint”), which adds Epic as a Respondent in this case, as well as new factual allegations.

Omni does not oppose Complainant's Motion for Leave. Accordingly, Omni consents to the filing of Complainant's Amended Complaint in the form in which it was submitted to the Commission for filing on February 15, 2023. Omni also understands that the Commission is likely to grant the Motion for Leave and permit the filing of the Amended Complaint, because the Commission is guided, in part, by the Federal Rules of Civil Procedure's admonition that leave should be freely granted. *See* Fed. R. Civ. P. 15(a)(2) ("The court should freely give leave when justice so requires"); *see also CCMA, LLC v. Maersk A/S et al.*, Docket No. 22-01, 2022 WL 458571, at 1 (F.M.C.) (noting that the Commission's rules do not provide criteria for evaluating whether to grant or deny a motion to amend a complaint, but the Federal Rules of Civil Procedure will be followed "to the extent they are consistent with sound administrative practice").

Omni also understands that the filing of the Amended Complaint moots Omni's Motion to Dismiss by operation of law. *See, e.g., Marine Transport Logistics, Inc. v. CMA-CGM (America), LLC*, Docket No. 22-23, 2022 WL 17592359, at *1 (F.M.C.) (denying motion to dismiss as moot upon the filing of amended complaint). However, by consenting to the filing of the Amended Complaint, Omni does not waive any of the arguments asserted in the Motion to Dismiss, and instead expressly reserves the right to raise such arguments in response to the Amended Complaint. Further Omni respectfully requests, in accordance with the Commission's practice, that it be permitted 25 days from the date of service to respond to the Amended Complaint. *See id.* (Ordering "Respondents [to] file a response to the amended complaint within 25 days after the date of service").

Omni, through its counsel, attempted to memorialize its consent to the Motion for Leave and the filing of the Amended Complaint in a proposed joint filing with Complainant, but Complainant has not responded to provide its consent. (*See* Proposed Joint Motion Stipulating to

the Filing of Complainant's Amended Complaint, attached hereto as **Exhibit A**, and relevant correspondence with counsel, attached hereto as **Exhibit B**).

Dated: February 16, 2023

Respectfully submitted,

**BENESCH, FRIEDLANDER,
COPLAN & ARONOFF LLP**

By: /s/ Marc S. Blubaugh

MARC S. BLUBAUGH (Ohio Bar No.
0068221)

mblubaugh@beneschlaw.com

NICHOLAS P. LACEY (Ohio Bar No.
0100042)

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41 S. High Street. Suite 2600

Columbus, OH 43215

Telephone: (614) 223-9300

Facsimile: (614) 223-9330

Counsel for Respondent Omni Logistics LLC

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that on this 16th day of February, 2023, a true and correct copy of the foregoing filing was served via electronic mail on:

Tiffany N. Compres, Esq. (tiffany.compres@fisherbroyles.com)
Gene M. Burd (gene.burd@fisherbroyles.com)

Counsel for Complainant Thompson Pipe Group, Inc.

/s/ Marc S. Blubaugh
Marc S. Blubaugh

EXHIBIT A

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 22-31

THOMPSON PIPE GROUP, INC.
COMPLAINANT

v.

OMNI LOGISTICS LLC,
RESPONDENT.

**JOINT MOTION OF THE PARTIES STIPULATING TO
THE FILING OF COMPLAINANT'S AMENDED COMPLAINT**

Complainant Thompson Pipe Group, Inc. ("TPG") and Respondent Omni Logistics, LLC ("Omni") respectfully submit this joint motion stipulating to the filing of TPG's Amended Complaint, which was submitted as exhibit to TPG's Cross-Motion for Leave to Amend the Complaint, on the terms set forth below:

- (1) A non-redline version of TPG's proposed Amended Complaint, otherwise identical to the version submitted on February 9, 2023, which adds Epic Freight Solutions, LLC ("Epic") as a defendant, and adds further factual allegations, shall be deemed filed as of the date the Commission grants the Proposed Order, which is attached hereto as **Exhibit A**;
- (2) The filing of the Amended Complaint moots Omni's pending Motion to Dismiss for Lack of Subject Matter Jurisdiction and for Failure to State a Claim upon which Relief can be Granted (the "Motion to Dismiss"), filed on January 24, 2023;
- (3) By consenting to the filing of TPG's Amended Complaint, Omni does not waive any defenses, including, but not limited to, the defenses raised in Omni's Motion to Dismiss, and Omni expressly reserves the right to assert any such defenses in its response to the Amended Complaint;
- (4) Counsel for Omni will accept service of the Notice of Filing and the Amended Complaint on behalf of Omni and Epic Freight Solutions, LLC ("Epic") via email; and

(5) Omni (and Epic) will respond to the Amended Complaint within the time required under the Commission's Rules of Practice.

Agreed and stipulated by:

**BENESCH, FRIEDLANDER,
COPLAN & ARONOFF LLP**

By: /s/ Marc S. Blubaugh
MARC S. BLUBAUGH (Ohio Bar No.
0068221)
mblubaugh@beneschlaw.com
NICHOLAS P. LACEY (Ohio Bar No. 0100042)
nlacey@beneschlaw.com
41 S. High Street, Suite 2600
Columbus, OH 43215
Telephone: (614) 223-9300
Facsimile: (614) 223-9330

Counsel for Respondent Omni Logistics, LLC

And

FISHERBROYLES LLP

By: /s/ Tiffany N. Compres
Tiffany N. Compres (Fl Bar. No. 78118)
tiffany.compres@fisherbroyles.com
Tel: (305) 342.2957
1221 Brickell Avenue, Suite 900
Miami, Florida 33131
Gene M. Burd (D.C. Bar No. 1004330)
gene.burd@fisherbroyles.com
Tel: (202) 750.0529
1200 G Street NW, Suite 800
Washington, D.C. 20005

*Counsel for Complainant Thompson Pipe
Group, Inc.*

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 22-31

THOMPSON PIPE GROUP, INC.
COMPLAINANT

v.

OMNI LOGISTICS LLC,
RESPONDENT.

**PROPOSED ORDER GRANTING THE JOINT MOTION OF THE PARTIES
STIPULATING TO THE FILING OF COMPLAINANT’S AMENDED COMPLAINT**

This matter is before the Commission on the Joint Motion of Complainant Thompson Pipe Group, Inc. (“TPG”) and Respondent Omni Logistics, LLC (“Omni”) Stipulating to the Filing of Complainant’s Amended Complaint (the “Joint Motion”). Having considered the Joint Motion, and being advised that TPG and Omni stipulate to its terms, the Commission finds the Joint Motion well taken and accordingly GRANTS the Joint Motion.

- (1) A non-redline version of TPG’s proposed Amended Complaint, otherwise identical to the version submitted on February 9, 2023, which adds Epic Freight Solutions, LLC (“Epic”) as a defendant, and adds further factual allegations, shall be deemed filed as of the date of this Order;
- (2) The filing of the Amended Complaint moots Omni’s pending Motion to Dismiss for Lack of Subject Matter Jurisdiction and for Failure to State a Claim upon which Relief can be Granted (the “Motion to Dismiss”), filed on January 24, 2023;
- (3) By consenting to the filing of TPG’s Amended Complaint, Omni does not waive any defenses, including, but not limited to, the defenses raised in Omni’s Motion to Dismiss, and Omni maintains the right to assert any such defenses in its response to the Amended Complaint;
- (4) Counsel for Omni will accept service of the Notice of Filing and the Amended Complaint on behalf of Omni and Epic Freight Solutions, LLC (“Epic”) via email; and

(5) Omni (and Epic) will respond to the Amended Complaint within the time required under the Commission's Rules of Practice.

IT IS SO ORDERED, ADJUDGED, AND DECREED.

Date: _____

Hon. Erin M. Wirth

Prepared by:

**BENESCH, FRIEDLANDER,
COPLAN & ARONOFF LLP**

By: /s/ Marc S. Blubaugh
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NICHOLAS P. LACEY (Ohio Bar No. 0100042)
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Facsimile: (614) 223-9330

Counsel for Respondent Omni Logistics, LLC

And

FISHERBROYLES LLP

By: /s/ Tiffany N. Compres
Tiffany N. Compres (Fl Bar. No. 78118)
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Tel: (305) 342.2957
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Miami, Florida 33131
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Tel: (202) 750.0529
1200 G Street NW, Suite 800
Washington, D.C. 20005

*Counsel for Complainant Thompson Pressure
Group, Inc.*

EXHIBIT B

Lacey, Nicholas

From: Gene Burd <Gene.Burd@FisherBroyles.com>
Sent: Thursday, February 16, 2023 1:41 PM
To: Lacey, Nicholas; Blubaugh, Marc
Cc: Lisa Powell; Tiffany Compres
Subject: RE: [External Sender]FMC Docket No. 22-31 - Thompson Pipe Group, Inc. v. Omni Logistics LLC

Nick, we are working on urgent filings today. Will get back to you tomorrow.

Gene

Gene M. Burd
Partner

FisherBroyles, LLP
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From: Lacey, Nicholas <NLacey@beneschlaw.com>
Sent: Thursday, February 16, 2023 11:09 AM
To: Blubaugh, Marc <mblubaugh@Beneschlaw.com>; Gene Burd <Gene.Burd@FisherBroyles.com>
Cc: Lisa Powell <Lisa.Powell@fisherbroyles.com>; Tiffany Compres <Tiffany.Compres@FisherBroyles.com>
Subject: RE: [External Sender]FMC Docket No. 22-31 - Thompson Pipe Group, Inc. v. Omni Logistics LLC

Gene:

I am following up on my email below.

Nick



Nicholas P. Lacey
Associate | Litigation
Benesch Friedlander Coplan & Aronoff LLP

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41 South High Street, Suite 2600, Columbus, OH 43215-6164

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From: Lacey, Nicholas <NLacey@beneschlaw.com>

Sent: Wednesday, February 15, 2023 12:26 PM

To: Blubaugh, Marc <mblubaugh@Beneschlaw.com>; Gene Burd <Gene.Burd@FisherBroyles.com>

Cc: Lisa Powell <Lisa.Powell@fisherbroyles.com>; Tiffany Compres <Tiffany.Compres@FisherBroyles.com>

Subject: RE: [External Sender]FMC Docket No. 22-31 - Thompson Pipe Group, Inc. v. Omni Logistics LLC

Gene:

Please see the attached draft joint motion and proposed order for your review and consideration. Please provide your comments by the end of today, if possible.

Thanks,
Nick



Nicholas P. Lacey
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From: Blubaugh, Marc <mblubaugh@Beneschlaw.com>

Sent: Tuesday, February 14, 2023 7:23 PM

To: Gene Burd <Gene.Burd@FisherBroyles.com>; Lacey, Nicholas <NLacey@beneschlaw.com>

Cc: Lisa Powell <Lisa.Powell@fisherbroyles.com>; Tiffany Compres <Tiffany.Compres@FisherBroyles.com>

Subject: RE: [External Sender]FMC Docket No. 22-31 - Thompson Pipe Group, Inc. v. Omni Logistics LLC

Gene:

I don't object to that approach.

I did not respond to your email regarding consent to your motion because, as I had expressly advised that Monday, I was traveling on business with extremely limited availability. In any event, you only gave me a few hours to respond to the request. You made your request at around 1:30 p.m. in the afternoon and advised that you needed to hear from me before the end of the day, which was simply not possible based on my other commitments.

We will follow-up with the motion.

Marc



Marc S. Blubaugh
Partner
Co-Chair, Transportation & Logistics Practice Group
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From: Gene Burd <Gene.Burd@FisherBroyles.com>
Sent: Tuesday, February 14, 2023 6:36 PM
To: Blubaugh, Marc <mblubaugh@Beneschlaw.com>; Lacey, Nicholas <NLacey@beneschlaw.com>
Cc: Lisa Powell <Lisa.Powell@fisherbroyles.com>; Tiffany Compres <Tiffany.Compres@FisherBroyles.com>
Subject: RE: [External Sender]FMC Docket No. 22-31 - Thompson Pipe Group, Inc. v. Omni Logistics LLC

Marc,

We've reached out to you in advance as required by the rules to seek your consent to the motion, but you did not respond. Our concern is that sending to the commission signed stipulated order is not a proper way to proceed. We certainly do not object to your stipulating as to our amended complaint, subject to comments just received from the Commission. I suggest that we should consider a stipulated motion seeking a stipulated order. That way, the Commission has the opportunity to review and approve the order as it deems appropriate. If you agree to proceed that way, please feel free to prepare a draft joint/stipulated motion with the proposed order attached.

Gene

Gene M. Burd
Partner

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From: Blubaugh, Marc <mblubaugh@Beneschlaw.com>
Sent: Tuesday, February 14, 2023 6:23 PM
To: Gene Burd <Gene.Burd@FisherBroyles.com>; Lacey, Nicholas <NLacey@beneschlaw.com>
Cc: Lisa Powell <Lisa.Powell@fisherbroyles.com>; Tiffany Compres <Tiffany.Compres@FisherBroyles.com>
Subject: RE: [External Sender]FMC Docket No. 22-31 - Thompson Pipe Group, Inc. v. Omni Logistics LLC

Gene:

I don't believe that the Commission's Rules of Practice prohibit submission of an Agreed Order for Judge Wirth's consideration. Moreover, the Commission's practice expressly encourages stipulations where possible (as emphasized in the Initial Order). We intended to submit this in the interest of judicial economy. Do I understand that you will not consent to the terms of the proposal, whether in the form of a proposed Agreed Order, a Stipulation, a Joint Motion, or otherwise?

Marc



Benesch

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From: Gene Burd <Gene.Burd@FisherBroyles.com>
Sent: Tuesday, February 14, 2023 5:27 PM
To: Lacey, Nicholas <NLacey@beneschlaw.com>; Blubaugh, Marc <mblubaugh@Beneschlaw.com>
Cc: Lisa Powell <Lisa.Powell@fisherbroyles.com>; Tiffany Compres <Tiffany.Compres@FisherBroyles.com>
Subject: RE: [External Sender]FMC Docket No. 22-31 - Thompson Pipe Group, Inc. v. Omni Logistics LLC

Nick,

With reference to the proposed agreed order, we don't believe that Commission's practice allows that. If you want to inform the Commission that you do not oppose the motion, you can do so directly, without our consent.

Regards,
Gene

Gene M. Burd
Partner

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From: Lacey, Nicholas <NLacey@beneschlaw.com>
Sent: Tuesday, February 14, 2023 12:35 PM
To: Gene Burd <Gene.Burd@FisherBroyles.com>; Blubaugh, Marc <mblubaugh@Beneschlaw.com>
Cc: Lisa Powell <Lisa.Powell@fisherbroyles.com>; Tiffany Compres <Tiffany.Compres@FisherBroyles.com>
Subject: RE: [External Sender]FMC Docket No. 22-31 - Thompson Pipe Group, Inc. v. Omni Logistics LLC

Counsel:

Attached for your review and consideration is a proposed Agreed Order granting TPG's Cross-Motion for Leave to Amend the Complaint. In short, we do not object to the filing of the Amended Complaint, but we want memorialize Respondent's express reservation of its rights to assert any defenses it asserted in the pending Motion to Dismiss in response to the Amended Complaint.

Please let us know within 24 hours if you consent to the terms of the attached Agreed Order such that we have your permission to sign your name and submit it to the Commission. Of course, please let us know if you have any proposed revisions to the draft. We look forward to hearing from you.

Thanks,
Nick



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From: Gene Burd <Gene.Burd@FisherBroyles.com>
Sent: Wednesday, February 8, 2023 1:22 PM
To: Blubaugh, Marc <mblubaugh@Beneschlaw.com>
Cc: Lisa Powell <Lisa.Powell@fisherbroyles.com>; Tiffany Compres <Tiffany.Compres@FisherBroyles.com>; Lacey, Nicholas <NLacey@beneschlaw.com>
Subject: RE: [External Sender]FMC Docket No. 22-31 - Thompson Pipe Group, Inc. v. Omni Logistics LLC